

OFFICE OF THE SECRETARY

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December 13, 2021

The Honorable Frederick N. Wapner
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Ernie Sandoval
CDCR No: AI8503
Case No: BA371228
Date of Sentence: September 6, 2011

Dear Honorable Frederick N. Wapner:

The purpose of this letter is to provide the court with the authority to resentence inmate Ernie Sandoval, AI8503 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that upon, recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Sandoval has remained disciplinary free since being received to the California Department of Corrections and Rehabilitation (CDCR) on October 5, 2011. Inmate Sandoval is currently assigned as a Barber. Inmate Sandoval also participates in in College, Celebrate Recovery Inside, and Soledad Arts Reality Check. Inmate Sandoval has received numerous certificates and 13 laudatory chronos from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups. Inmate Sandoval has also received ten laudatory chronos from Correctional staff acknowledging him for his work ethic and positive behavior.

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Having reviewed the enclosed documentation it appears that inmate Sandoval's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office